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Case Number: 25STCV26011 Hearing Date: July 9, 2026 Dept: 729

Superior Court of

California

County of Los Angeles

DEPARTMENT 729

TENTATIVE RULING

REGINALD

MOORE,

vs.

AEROTEK, INC.,

et al.

Case No.:

25STCV26011

Hearing Date: July 9, 2026

Defendant Aerotek, Inc.'s motion to
compel arbitration of Plaintiff Reginald Moore's claims in this action is
granted. This case is stayed pending
arbitration.

Defendant TABC, Inc.'s joinder to

Defendant Aerotek, Inc.'s motion is granted.

The Court sets a non-appearance case review for July 9, 2027, at 8:30 a.m. The parties are directed to submit a joint statement five calendar days in advance, apprising the Court of the status of the arbitration.

Defendant Aerotek, Inc. ("Aerotek") ("Moving Defendant") moves for an order compelling arbitration of all claims asserted by Plaintiff Reginald Moore ("Moore") ("Plaintiff") and staying the instant action during the pendency of arbitration. (Notice of Motion, pgs. 2-3; 9 U.S.C. §§3-4; C.C.P. §§1281.2, 1281.4.)

Defendant TABC, Inc. ("TABC") ("Joining Defendant") joins Moving Defendant's motion. (Notice of Joinder, pgs. 2-3; 9 U.S.C. §2, et seq.; C.C.P. §1281.4.)

Evidentiary Objections

Moving Defendant's 7/1/26 evidentiary objections to the Declaration of Reginald Moore ("Moore") are overruled as to Nos. 1 and 2.

Request for Judicial Notice

Moving Defendant's 4/28/26 request for judicial notice of Exhibits 1-44 is denied as irrelevant.

Background

On September 5, 2025, Plaintiff filed the instant action against Moving Defendant and Joining Defendants (collectively, "Defendants"), asserting thirteen causes of action: (1) race discrimination; (2) disability discrimination; (3) failure to reasonably accommodate; (4) failure to engage in the interactive process; (5) failure to failure to take all reasonable steps to prevent and/or remedy discrimination and/or retaliation; (6) retaliation in violation of FEHA; (7) failure to re-hire in violation of FEHA on account or disability and/or engagement of protected activities; (8) retaliation and/or wrongful termination in violation of Labor Code §232.5; (9) retaliation and/or wrongful termination in violation of Labor Code §6310; (10) retaliation and/or wrongful termination in violation of Labor Code §1102.5; (11) wrongful

termination in violation of public policy; (12) defamation; and (13) failure to permit inspection of payroll and personnel records. (See Complaint.)

On March 24, 2026, Plaintiff named Duluth Services, Inc. (“Duluth”) as DOE 1. (3/24/26 Amendment to Complaint.)[1]

Moving Defendant filed the instant motion on April 28, 2026. Joining Defendant filed its joinder on April 29, 2026. Plaintiff filed his opposition on June 25, 2026. On July 1, 2026, Moving Defendant filed its reply.

As a preliminary matter, Moving Defendant contacted Plaintiff on February 6, 2026, requesting that Plaintiff submit his claims to arbitration. (Decl. of Kun ¶2, Exh. 24.) On March 25, 2026, Plaintiff’s counsel refused to submit to arbitration. (Decl. of Kun ¶6, Exh. 28.) Moving Defendant’s motion is therefore proper.

Motion to Compel Arbitration

A. Arbitration Agreement

1.

The Arbitration Agreement is enforceable.

Federal

law provides for enforcement of this Arbitration Agreement. The Federal Arbitration Act, 9 U.S.C. §1, et seq. (“FAA”), establishes a strong federal policy in favor of arbitration of disputes where a written arbitration agreement exists. Section 2 of the FAA provides, in pertinent part that “[a] written provision . . . to settle by arbitration a controversy thereafter arising out of such contract . . . shall be valid, irrevocable, and enforceable.” (9 U.S.C. §2.) The purpose of the FAA is to “reverse the longstanding judicial hostility to arbitration agreements.” (Gilmer v. Interstate/Johnson Lane Corp. (1991) 500 U.S. 20, 24.) The FAA places arbitration agreements “on an equal footing with other contracts and [requires courts] to enforce them according to their terms.” (AT&T Mobility, LLC v. Concepcion (2011) 563 U.S. 333, 339; see also Rent-A-Center

West, Inc. v. Jackson (2010) 561 U.S. 63, 67 [“The FAA reflects the fundamental principle that arbitration is a matter of contract.”].) The FAA will preempt not only a state law that “discriminat[es] on its face against arbitration,” but also a state law that “covertly accomplishes the same objective by disfavoring contracts that (oh so coincidentally) have the defining features of arbitration agreements.” (Kindred Nursing Centers Limited Partnership v. Clark (2017) 137 S.Ct. 1421, 1426.)

The

FAA restricts a court’s inquiry related to compelling arbitration to two threshold questions: (1) whether there was an agreement to arbitrate between the parties; and (2) whether the agreement covers the dispute. (Howsam v. Dean Witter Reynolds, Inc. (2002) 537 U.S. 79, 84.) Here, both criteria are satisfied. First, Plaintiff agreed to arbitration when he entered into Mutual Arbitration Agreement (“Arbitration Agreement”) with Aerotek on September 7, 2023. (Decl. of Collum ¶24, Exh. 4.) Second, the Arbitration Agreement expressly covers

[A]ll disputes, claims, complaints, or controversies (“Claims”) that [Plaintiff] may have against Duluth Services, Inc. and/or any of its subsidiaries, affiliates, officers, directors, employees, agents, and/or any of its clients or customers (collectively and individually the “Company”), or that the Company may have against [Plaintiff], including contract claims; tort claims; discrimination and/or harassment claims; retaliation claims; claims for wages, compensation, penalties or restitution; and any other claim under any federal, state, or local statute, constitution, regulation, rule, ordinance, or common law, arising out of and/or directly or indirectly related to [Plaintiff’s] application for employment with the Company, and/or [Plaintiff’s] employment with the Company, and/or the terms and conditions of [Plaintiff’s] employment with the Company, and/or termination of [Plaintiff’s] employment with the Company (collectively “Covered Claims”), are subject to confidential arbitration pursuant to the terms of this Agreement and will be resolved by Arbitration and NOT by a court or jury.

(Decl. of Collum ¶24, Exh. 4.)

Plaintiff argues in opposition that Defendants cannot adequately authenticate the purported arbitration agreement was signed by Plaintiff. (Opposition, pg. 9.) Plaintiff’s argument is unavailing.

A

proponent of an e-signature may authenticate the signature by introducing any “evidence

sufficient to sustain a finding that it is the writing that the proponent of the evidence claims it is,” which includes circumstantial evidence. (*Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1061; Evid. Code §1400; *People v. Calhoun* (2019) 38 Cal.App.5th 275, 313.) This includes “a showing of the efficacy of any security procedure applied to determine the person to which the . . . electronic signature was attributable.” (*Espejo*, 246 Cal.App.4th at pg. 1061, citing Civ. Code §1633.9(a).)

Here, Moving Defendant also provides the means by which Plaintiff electronically signed the Arbitration Agreement, and the efficacy of the security procedure applied to determine that Plaintiff's signature on the agreement was attributable to him. Moving Defendant's and Duluth's Product Owner for Onboarding Automation/Applicant Candidate Tracker, Lindsey Collum (“Collum”), sufficiently declares the means by which Moving Defendant's onboarding records are maintained and signatures from applicants are obtained. (See Decl. of Collum ¶¶5-25.) Collum declares that Arbitration Agreements and all of Plaintiff's other onboarding documents were edited solely by Plaintiff based on the onboarding system's report of documents submitted to the software system known as “Onboarding Automation,” which is Duluth and Moving Defendant's initial onboarding tool for pre-employment electronic paperwork. (See Decl. of Collum ¶¶8, 22, Exh. 2.) Collum declares that Plaintiff “completed his onboarding documents on September 7, 2023, at 8:52 p.m. EST for his assignment at Toyota. Plaintiff was sent an email by a company representative to his personal email address , which he provided to the company. After registering his email and creating a self-selected password, Plaintiff was able to access Onboarding Automation and complete his onboarding documents for his first and second assignments.” (Decl. of Collum ¶19.) Moving Defendant sufficiently met its burden to authenticate Plaintiff's electronic signature on the Arbitration Agreement.

California law also favors arbitration for dispute resolution. The California Arbitration Act (“CAA”), codified at C.C.P. §1281 et seq., provides, “A written agreement to submit to arbitration an existing controversy or a controversy thereafter arising is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract.” (C.C.P. §1281; see also *Grafton Partners L.P. v. Superior Court* (2005) 36 Cal.4th 944, 955 “[U]nlike predispute jury waivers, predispute arbitration agreements are specifically authorized by

statute.”.)

“California

law, like federal law, favors enforcement of valid arbitration agreements.” (Armendariz v. Foundation Health Psychcare Services, Inc. (2000) 24 Cal.4th 83, 97, 99.) The public policy in favor of arbitration is

so strong that California courts have held that an employee is “bound by the provisions of the [arbitration] agreement regardless of whether [he] read it or

[was] aware of the arbitration clause when [he] signed the document.” (Brookwood v. Bank of America (1996)

45 Cal.App.4th 1667, citing Macaulay v. Norlander (1992) 12 Cal.App.4th

1.) The only prerequisite for a court to

order arbitration is a determination that the parties have entered into an agreement to arbitrate the dispute. (United

Transportation Union v. Southern California Rapid Transit District (1992) 7

Cal.App.4th 804, 808.) Thus, arbitration

must be ordered “unless the agreement clearly does not apply to the dispute in question.” (Vianna v. Doctors’

Management Co. (1994) 27 Cal.App.4th 1186, 1189.)

Plaintiff

agreed to arbitration when he entered into the Arbitration Agreement. (Decl.

of Collum ¶24, Exh. 4.) The Arbitration Agreement expressly

covers the “Covered Claims” stated above. (Decl. of Collum ¶24, Exh. 4.)

Based

on the foregoing, Moving Defendant proved the existence of a valid Arbitration Agreement that is enforceable by Moving Defendant.

2.

Covered Claims

The

Arbitration Agreement states,

Except

as expressly set forth in the section, “Claims Not Covered by this Agreement,”

all disputes, claims, complaints, or controversies (“Claims”) that I may have

against Duluth Services, Inc. and/or any of its subsidiaries, affiliates,

officers, directors, employees, agents, and/or any of its clients or customers

(collectively and individually the “Company”), or that the Company may have

against me, including contract claims; tort claims; discrimination and/or

harassment claims; retaliation claims; claims for wages, compensation, penalties or restitution; and any other claim under any federal, state, or local statute, constitution, regulation, rule, ordinance, or common law, arising out of and/or directly or indirectly related to my application for employment with the Company, and/or my employment with the Company, and/or the terms and conditions of my employment with the Company, and/or termination of my employment with the Company (collectively "Covered Claims"), are subject to confidential arbitration pursuant to the terms of this Agreement and will be resolved by Arbitration and NOT by a court or jury. The parties hereby forever waive and give up the right to have a judge or a jury decide any Covered Claims.

(Decl. of Collum ¶24, Exh. 4.)

The "Claims Not Covered by this Agreement," are

"[w]orkers'

compensation benefits, unemployment compensation benefits, claims for benefits under a plan that is governed by the Employee Retirement Income Security Act of 1974 ("ERISA"), and claims which are subject to the exclusive jurisdiction of the NLRB" and "[a]ny claim that is expressly precluded from arbitration by a governing federal law or by a state law that is not preempted by the Federal Arbitration Act ("FAA") or other federal law."

(Decl. of Collum ¶24, Exh.

4.)

Plaintiff

argues that the FAA does not govern a contract of employment where the employee

belongs to a class of workers engaged in foreign or interstate commerce. (Opposition, pg. 5, citing 9 U.S.C. §1.) "[T]he party opposing arbitration bears the

burden of demonstrating that the [transportation] exemption applies." (Performance Team Freight Systems, Inc. v.

Aleman (2015) 241 Cal.App.4th 1233, 1240.) Given the federal policy favoring arbitration,

as well as the clear mandate that "any doubts concerning the scope of

arbitrable issues should be resolved in favor of arbitration,' . . . the

section 1 exemption is given a 'narrow construction.'" (Id., citations omitted.) Section 1's catchall phrase "any other class

of workers engaged in foreign or interstate commerce" does not refer to all

workers involved in foreign or interstate commerce, but rather only to

"transportation workers." (Muller v.

Roy Miller Freight Lines, LLC (2019) 34 Cal.App.5th 1056, 1062.) To qualify as an exempt transportation worker

under §1's catchall phrase, "any exempt worker 'must at least play a direct and

“necessary role in the free flow of goods across borders”” because “[t]hese requirements ‘undermine[] any attempt to give the provision a sweeping, open-ended construction,’ instead limiting § 1 to its appropriately ‘narrow’ scope.” (Bissonnette v. LePage Bakeries Park St., LLC (2024) 601 U.S. 246, 256.) “[T]o fall within the exemption, the workers must be connected not simply to the goods, but to the act of moving those goods across state or national borders.” (Wallace v. Grubhub Holdings, Inc. (7th Cir. 2020) 970 F.3d 798, 802 [“Put differently, a class of workers must themselves be ‘engaged in the channels of foreign or interstate commerce.’”], citations omitted.)

Plaintiff

fails to meet his burden to show that he is a “transportation worker” within the narrow construction of the transportation exemption. By Plaintiff’s own admission, his job duties had nothing to do with moving or transporting goods across state or national borders, nor was he involved in the channels of interstate commerce. (Decl. of Moore ¶¶3-5.) Plaintiff acknowledges his duties were limited to “welding and installing bolts into vehicles” as well as the inspection of “automotive components, including tailgates, fenders, roofs, and sunroofs, as those components moved through TABC’s conveyor-line process.” (Decl. of Moore ¶4.) Plaintiff further acknowledges that he was not directly involved in the transfer, shipment, or distribution of TABC’s automotive components, and instead, he was only part of the “process for preparing automotive component parts for transfer, shipment, distribution, and further movement.” (Id., emphasis added.) By Plaintiff’s own admission, Plaintiff did not transfer, ship, distribute, or further move products himself. (Decl. of Moore ¶¶3-5.) Instead, Plaintiff’s job duties of assembling, inspecting, and preparing goods preceded the actual transportation of those products, thereby demonstrating that Plaintiff was not a “transportation worker” and is not exempt from the FAA.

Here,

all claims asserted by Plaintiff arise out of Plaintiff’s employment with Duluth and Aerotek, and are claims for discrimination and/or harassment claims; retaliation claims; claims for wages, compensation, penalties or restitution; and any other claim under any federal, state, or local statute, constitution, regulation, rule, ordinance, or common law, arising out of and/or directly or indirectly related to Plaintiff’s employment. Accordingly, the arbitration provision squarely encompasses the dispute. Based on the foregoing, Moving Defendant met its burden of establishing the Arbitration Agreement covers the causes of action asserted in Plaintiff’s Complaint.

B.

Unconscionability

“[P]rocedural

and substantive unconscionability must both be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability.” (Armendariz, 24 Cal.4th at pg. 102.) Courts invoke a sliding scale which disregards the regularity of the procedural process of the contract formation, that creates the terms, in proportion to the greater harshness or unreasonableness of the substantive terms themselves, i.e., the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to conclude that the term is unenforceable, and vice versa. (Id., at pg. 114.) Plaintiff bears the burden of proving that the provision at issue is both procedurally and substantively unconscionable.

1.

Procedural

Unconscionability

Plaintiff

argues the Arbitration Agreement is procedurally unconscionable because the Arbitration Agreement is a contract of adhesion and therefore oppressive. (Opposition, pg. 11.)

“Procedural

unconscionability focuses on the elements of oppression and surprise.

[Citations] ‘Oppression arises from an inequality of bargaining power which results in no real negotiation and an absence of meaningful choice . . .

Surprise involves the extent to which the terms of the bargain are hidden in a ‘prolix printed form’ drafted by a party in a superior bargaining position.’

[Citations.]” (Roman v. Superior

Court (2009) 172 Cal.App.4th 1462, 1469.)

Procedural

unconscionability “focuses on the unequal bargaining positions and hidden terms common in the context of adhesion contracts.”

(24 Hour Fitness, Inc. v. Superior Court (1998) 66 Cal.App.4th

1199, 1212-1213.) Although standard

employment agreements offered on a “take it or leave it” basis are generally considered contracts of adhesion, this alone is not enough to equate to unconscionability. (See *Graham v. Scissor-Tail, Inc.* (1981) 28 Cal.3d 807, 817-819 [“To describe a contract as adhesive in character is not to indicate its legal effect. It is, rather, ‘the beginning and not the end of the analysis insofar as enforceability of its terms are concerned.’”].)

Adhesion contracts are “fully enforceable . . . unless certain other factors are present which under established legal rules—legislative or judicial—operate to render it otherwise.” (Id. at pgs. 819-820; *Harper v. Ultimo* (2003) 113 Cal.App.4th 1402, 1409 [adhesion alone does not render arbitration agreements unconscionable]; see also *Armendariz*, 24 Cal.4th at 114; *Lagatree v. Luce, Forward, Hamilton & Scripps, LLP* (1999) 74 Cal.App.4th 1105 [discussing many authorities upholding arbitration agreements contained in adhesion contracts].)

Plaintiff’s

argument in opposition that he had no meaningful opportunity to negotiate the Arbitration Agreement is unavailing. The adhesive nature of arbitration agreements in the employment context alone does not render an agreement unenforceable. (*Lagatree*, 74 Cal.App.4th at pg. 1127 [“[C]ases uniformly agree that a compulsory predispute arbitration agreement is not rendered unenforceable just because it is required as a condition of employment or offered on a ‘take it or leave it’ basis.”]; *Armendariz*, 24 Cal. 4th at pg. 113 [holding that the requirement that the employee sign an arbitration agreement may contain some elements of procedural unconscionability, but that, in itself, does not invalidate the arbitration agreement]; *Ajamian v. CantorCO2e, LP* (2012) 203 Cal.App.4th 771, 796 [“Where there is no other indication of oppression or surprise, the degree of procedural unconscionability of an adhesion agreement is low[.]”].)

Here,

the Arbitration Agreement is a stand-alone document that provided Plaintiff with the opportunity “discuss this Agreement with [Plaintiff’s] own attorney if [Plaintiff] wish[es] to do so.” (Decl. of Collum ¶24, Exh. 4.) Plaintiff’s decision to forgo meeting with an attorney to discuss the Arbitration Agreement does not render the agreement oppressive.

Plaintiff’s

argument that he was not provided with the then-current JAMS employment

arbitration rule and procedures, rendering the document substantively unconscionable, is also unavailing. In *Lane v.*

Francis Capital Management LLC, the Court of Appeal determined that the Defendant's failure to attach a copy of the AAA rules did not render the arbitration agreement at issue procedurally unconscionable. (*Lane v. Francis Capital Management LLC* (2014) 224 Cal.App.4th 676, 691.) The *Lane*

Court stated there could be no surprise, as the arbitration rules referenced in the agreement were easily accessible to the parties on the Internet. (*Id.*)

Here, as in *Lane*, the then-current JAMS rules and procedures were made available to Plaintiff via weblink at the time the agreement was presented. (Decl. of Collum ¶24, Exh. 4.) Further, courts have held that a plaintiff's unconscionability claim often depends "in some manner on the arbitration rules in question" rather than "including them or attaching them to the arbitration agreement." (*Baltazar v. Forever 21, Inc.* (2016) 1237, 1246.) Here, Plaintiff does not question the JAMS Rules themselves as unconscionable. (Opposition, pg. 11.) Furthermore, courts have addressed the JAMS Rules and have found that "[JAMS rules are generally accepted as fair." (*Murrey v. Superior Court* (2023) 87 Cal.App.5th 1223, 1242.)

Plaintiff

has failed to demonstrate any procedural unconscionability. (*Hicks v. Superior Court* (2004) 115 Cal.App.4th 77, 91.) Based on the foregoing, the Court finds the Arbitration Agreement is not procedurally unconscionable.

2.

Substantive

Unconscionability

Plaintiff

argues the Arbitration Agreement is substantively unconscionable because it (1) lacks mutuality; and (2) improperly limits judicial review otherwise available under California Arbitration Law. (Opposition, pgs. 12-14.)

"Substantive

unconscionability focuses on the actual terms of the agreement and evaluates whether they create 'overly harsh' or "one-sided' results' [Citations] that is, whether contractual provisions reallocate risks in an objectively

unreasonable or unexpected manner.

[Citation] Substantive unconscionability 'may take various forms,' but typically is found in the employment context when the arbitration agreement is 'one-sided' in favor of the employer without sufficient justification, for example, when 'the employee's claims against the employer, but not the employer's claims against the employee, are subject to arbitration.'

[Citations]." (Roman, 172

Cal.App.4th at pgs. 1469-1470.) In

determining whether an arbitration agreement is unconscionable, the Court considers whether the agreement: (1) provides for a neutral arbitrator; (2) provides for reasonable discovery; (3) requires a written award; (4) provides for the same remedies that otherwise would be available in court; and (5) does not require employees to bear costs unique to arbitration. (See Armendariz, 24 Cal.4th at pgs. 102-103.)

First,

Plaintiff's argument that the Arbitration Agreement lacks mutuality because it requires Plaintiff to submit the claims that an employee is likely to bring, including claims for discrimination, harassment, retaliation, wrongful termination, and claims arising from terms or conditions of employment to confidential, binding arbitration, yet expressly reserves for a "court of competent jurisdiction," rather than the arbitrator, disputes concerning the enforceability or validity of the class action, collective action, or representative action waiver is unavailing. The express language of the agreement confers a reciprocal obligation amongst the parties to arbitrate matters related to Plaintiff's employment. The agreement states that "except as expressly set forth in the section, 'Claims Not Covered by this Agreement', all disputes, claims, complaints, or controversies that [Plaintiff] may have against [the Company] or that the Company may have against [Plaintiff]" are subject to arbitration "pursuant to terms of the Agreement." (Decl. of Collum ¶24, Exh.

4.) The language in the Arbitration

Agreement does not afford Moving Defendant a unilateral right to compel arbitration while allowing it to pursue claims outside of arbitration. Moreover, the allocation of the class-waiver enforceability question to a court is neutral to both parties and is not a one-sided carve-out as Plaintiff suggests. The agreement's language grants a court authority to determine the enforceability of a class or representative claim equally to both parties, not just Moving Defendant. (Decl. of Collum ¶24, Exh. 4.)

Further,

contrary to Plaintiff's contention, not only does the Agreement not contain a

PAGA waiver, but the Agreement also makes no mention whatsoever of PAGA. (Decl. of Collum ¶24, Exh. 4.) Under the FAA, employers are entitled to

enforce arbitration agreements insofar as they mandate arbitration of individual PAGA claims. (Viking River Cruises, Inc. v. Moriana (2022) 596 U.S. 639, 662.)

Second,

Plaintiff's argument that degree to which Defendant can use arbitration clauses to take advantage of employees far exceeds the permissible "margin of safety" allowed by Armendariz is unavailing. Plaintiff is essentially arguing that JAMS is not a neutral forum and that arbitration as a whole is unconscionable. As stated earlier, these contentions are unsupported by California case law.

Based

on the evidence before the Court, the terms of the Arbitration Agreement does not create overly harsh or one-sided results, satisfying the requirements for a substantively conscionable agreement.

Based

on the foregoing, the Court finds the Arbitration Agreement is not substantively unconscionable.

C.

Stay of Current
Action

The

FAA mandates a stay. Where an action involves "any issue referable to arbitration under an agreement in writing," the court "shall on application of one of the parties stay the trial of the action until such arbitration has been had." (9 U.S.C. §3.) The statutory directive is not discretionary as to claims subject to arbitration. Plaintiff's claims against all Defendants arise from the operative facts. Because the arbitration will address the core factual and legal issues underlying the action, a stay of the entire matter pending completion of arbitration would serve judicial efficiency and avoid inconsistent results.

Accordingly,

this case is stayed pending arbitration.

D.

Conclusion

Moving Defendant's
motion to compel arbitration is granted.

Joining
Defendant's joinder to Moving Defendant's motion is granted.

The case is
stayed pending arbitration. The Court sets a non-appearance case review for July
9, 2027, at 8:30 a.m. The parties are
directed to submit a joint statement five calendar days in advance, apprising
the Court of the status of the arbitration.

Moving Party to
give notice.

Dated: July _____, 2026

Hon. Daniel M. Crowley

Judge of the Superior Court

[1] The Court notes that Moving Defendant and Duluth are temporary staffing companies and are affiliates of each other, each providing recruiting and staffing solutions to meet the needs of their clients by hiring temporary (or "contract") employees for work on temporary assignments at client sites nationwide. (Decl. of Collum ¶3.) Joining Defendant Toyota Motor North America, Inc. ("Toyota" or "TABC INC") is one of Moving Defendant's clients that specializes in automobile manufacturing and distribution. (Decl. of Collum ¶4.)